

26SMCV01438 26SMCV01438

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Case Number: 26SMCV01438 Hearing Date: August 13, 2026 Dept: M

CASE NAME: Sedaghat v. Pascale,
et al.

CASE NO.: 26SMCV01438

MOTION: Special

Motion to Strike

HEARING DATE: 8/13/2026

Legal

Standard

Code of Civil Procedure ("CCP")

section 425.16 permits the Court to strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition, unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim. "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation." (Baral v. Schnitt (2016) 1 Cal.5th 376, 393.)

"The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (Id. at 384.)

"Resolution of an anti-SLAPP motion

involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes

the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success.” (Baral, supra, 1 Cal.5th at 384, citation omitted.) The California Supreme Court has “described this second step as a ‘summary-judgment-like procedure.’ The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. ‘[C]laims with the requisite minimal merit may proceed.’” (Id. at 384-385, citations omitted.)

CCP section 425.16(e) defines protected acts as the following: 1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; 2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; 3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; or 4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

ANALYSIS

Defendant Stewart J. Levin specially moves to strike the Complaint of Plaintiff S. David Sedaghat in its entirety on the grounds that each cause of action asserted against Levin arises from acts in furtherance of Levin’s constitutional right of petition.

Levin argues that the allegations arise from the settlement negotiations, mediation, communications with opposing counsel, litigation strategy, and related acts undertaken while representing Plaintiff. Indeed, Plaintiff’s claims against Levin arise from Levin’s representation of Plaintiff in prior litigation, *Sedaghat v. Tarzana Health and Rehabilitation Center, et al.*, LASC No. BC700483. The complaint alleges that Levin for his own personal benefit and against interest of his client

entered into an agreement with attorneys of Defendants Tarzana Rehab, SAVA Seniorcare and Pascale, to unduly influence Plaintiff to accept a low offer, to discharge Defendant Kamrava altogether, and force plaintiffs to accept an agreement which would place responsibility for any Medical liens on Plaintiff. (Compl., ¶¶ 12-15.) Levin has also refused to disburse the settlement funds as to plaintiffs as further leverage to pressure plaintiff. (Id., ¶ 16.) Levin has also refused to turn over the case records. (Id., ¶ 17.) The complaint alleges several claims against Levin, including extortion, breach of contract, breach of fiduciary duty, violation of the Bane Act, infliction of emotional distress, and defamation. In support of the extortion cause of action, Plaintiff alleges that Levin withheld the settlement funds and refusing to disburse the funds and placing pressure to dismiss the plaintiffs who have already settled and did not appeal to force dismissal and force plaintiff to accept the liens. (Id., ¶ 19.) Levin allegedly breached his contract by placing undue pressure on Plaintiff, via his conduct in settling the action, and for refusal to release the funds. (Id., pp. 4-6.) Levin allegedly breached his fiduciary duty by colluding with defendant to extort and place pressure on Plaintiff. (Id., at 5.) Levin breached his professional duties by withholding the full client records. (Id., at 5-6.) Levin breached the Bane Act by colluding with the other defendants, and using threats, intimidation and coercing Plaintiff to deny and interfere with his rights. (Id., at 7.) Levin's breaches of fiduciary duty also caused emotional distress. (Id., at 7.) Levin committed defamation by claiming that Plaintiff's claims were limited to MICRA, and that Plaintiff's liens apply to the wrongful death action. (Id. at 7.)

The Complaint does not arise from protected activity as defined by section 425.16(e). The parties' authorities recognize that claims grounded in legal malpractice and breach of fiduciary duty do not arise from the attorneys' petition rights, but from Plaintiff's petitioning activity. (Freeman v. Schack (2007) 154 Cal.App.4th 719; Hylton v. Frank E. Rogozienski, Inc. (2009) 177 Cal.App.4th 1264; see Castleman v. Sagaser, (2013) 216 Cal. App. 4th 481 [an attorney's breach of fiduciary duties owed to a current or former client does not constitute protected speech or petitioning within the meaning of the anti-SLAPP statute].) The gravamen of the causes of actions stated against Levin is for legal malpractice and breach of fiduciary duty. Simply put, "[t]he breach of fiduciary duty lawsuit may follow litigation pursued against the former client, but does not arise from it." (Benasra v. Mitchell Silberberg & Knupp LLP (2004) 123 Cal.App.4th 1179, 1189.) Otherwise, any legal malpractice or breach of fiduciary duty cause of action would automatically

meet the first prong. The court in Freeman explained that section 425.16(e) does not apply to a client's claim against his or her former attorney for breach of fiduciary duty or for malpractice merely because the client's claim against the former attorney followed or was associated with petitioning activity by the attorney on the client's behalf. (Freeman, supra, 154 Cal.App.4th at 730-732.) In fact, Hylton involved analogous allegations of a scheme to coerce a settlement and extract excessive fees. (Hylton, supra, 177 Cal. App. 4th at 1269.) Levin cites no contrary authority which would support the proposition that a malpractice suit against a former counsel would implicate protected conduct under section 425.16(e).

Accordingly, the motion is DENIED.

Plaintiff requests sanctions of \$5,000.00 against Levin for bringing this motion. Pursuant to Code of Civil Procedure section 425.16(c)(1), if the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, in accordance with CCP section 128.5. However, the motion is not frivolous. "Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party. "Because the Legislature intended that the conditions for sanctions under the current version of section 128.5 mirror section 128.7, [the California Court of Appeal has held] that the objective standard used to evaluate section 128.7 sanctions motions applies to section 128.5." (San Diegans for Open Government v. City of San Diego (2016) 247 Cal.App.4th 1306, 1318.) "Although the objective standard of proof is easier to satisfy, the Legislature intended to 'retain the extremely high proof required for such awards' with its applicability lying with 'truly egregious behaviors.' " (Id. at 1318-19.) An objectively reasonable attorney standard applies to this determination. (Id. at 1319.) A claim is factually frivolous if it is "not well grounded in fact" and is legally frivolous if it is "not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law." (Bucur v. Ahmad (2016) 244 Cal.App.4th 175, 189–190.) Here, Levin argued for the extension of the anti-SLAPP protection to the instant allegations, while recognizing and attempting to distinguish the adverse caselaw in his opening brief. The moving papers thus demonstrates Levin's good faith in bringing the motion. Additionally, Plaintiff's request for \$5,000.00 is arbitrary and unsupported by evidence. Plaintiff does not show that he has incurred that amount in reasonable expenses in opposing this motion. Therefore, the request for attorneys' fees is DENIED.